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(1930-2021)

September 23, 2025

COPY

OFFICE OF
DISCIPLINARY COUNSEL
SEP 26 2025
RECEIVED

Sheena M. Broadwater, Investigator
Office of Disciplinary Counsel
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RE: ODC File No. 25-147
Bryan Charles Tipp's Response to Grievance and Supplement

Dear Ms. Broadwater:

Thank you for providing us the opportunity to respond on Bryan Charles Tipp's behalf to Mr. Elvis Nuno's Grievance and Supplemental Submission (collectively referred to as "Grievance") in this matter. As shown below, Mr. Nuno's Grievance lacks merit and has no factual or legal basis. In fact, Mr. Nuno's Grievance is founded upon lies, misrepresentations and falsifications, and is the product of Mr. Nuno's attempted extortion, harassment and intimidation of Mr. Tipp. At the outset, it must be stated that Mr. Tipp unequivocally disputes each and every allegation that Mr. Tipp violated the Montana Rules of Professional Conduct in his representation of Mr. Nuno.

The crux of Mr. Nuno's Grievance against Mr. Tipp is that Mr. Tipp failed to pursue civil claims on behalf of Mr. Nuno for alleged civil rights violations suffered by Mr. Nuno. These claims have no merit, whatsoever, as Mr. Tipp did not represent Mr. Nuno in relation to alleged civil rights violations, but instead represented him in relation to criminal charges brought against Mr. Nuno. As established by the Attorney-Client Fee Agreement (enclosed as Exhibit 1), Mr. Tipp was retained by Mr. Nuno to represent and defend Mr. Nuno on two counts of Felony Stalking, one count of Misdemeanor Stalking, and one count of Violation of a Protection Order. These charges are more fully set forth in the *State's Petition to Revoke Defendant's Release*, *Motion and Affidavit for Leave to File Information*, *Information*, and *Amended Information* (collectively enclosed as Exhibit 2). A simple review of the Attorney-Client Fee Agreement between Mr. Nuno and Mr. Tipp demonstrates that Mr. Tipp was not retained to pursue civil claims on behalf of Mr. Nuno for alleged civil rights violations suffered by Mr. Nuno.

Furthermore, Mr. Tipp reiterated this fact to Mr. Nuno on several occasions, and Mr. Nuno understood both that Mr. Tipp was not retained to pursue civil claims on Mr. Nuno's behalf, and that neither Mr. Tipp nor any other attorney at the firm

would represent Mr. Nuno on any such claims. This is acknowledged by Mr. Nuno in several email correspondences with Mr. Tipp during the time Mr. Tipp represented Mr. Nuno in regards to his criminal charges (enclosed as Exhibit 3 herein), in which Mr. Nuno consistently references both seeking outside counsel in regards to such claims, and actually speaking with other counsel in regards to such claims. Furthermore, the timeline and Mr. Tipp's actions are eloquently set forth in Mr. Tipp's enclosed June 30, 2025 email, which was sent in direct response to Mr. Nuno's June 30, 2025 threatening email and the associated harassing texts (collectively enclosed herein as Exhibit 4).

Regarding the allegations of violations of specific Rules of Professional Conduct, each and every allegation set forth by Mr. Nuno is without merit. Mr. Nuno alleges a violation of Rule 1.1, arguing that Mr. Tipp did not perform his duties with appropriate competence. The facts of this matter establish the opposite. As discussed above, Mr. Nuno was initially charged with two counts of Felony Stalking, one count of Misdemeanor Stalking, and one count of Violation of a Protection Order. Through Mr. Tipp's representation and defense of these criminal charges, all of the criminal charges against Mr. Nuno were dismissed, with prejudice (see *Order* enclosed herein as Exhibit 5). This dismissal was a result of Mr. Tipp's competent and vigorous defense of Mr. Nuno against these charges, which included the filing of several substantive motions by Mr. Tipp on behalf of Mr. Nuno (see *Defendant's Pretrial Motions & Brief in Support*, *Defendant's Brief in Support of Pretrial Motions Related to Amended Information*, *Motion to Exclude Evidence Under ER 404 & Brief in Support*, and *Motion to Suppress and Brief in Support* collectively enclosed herein as Exhibit 6). As demonstrated by these filings and the ultimate result of this case – dismissal of all charges against Mr. Nuno – Mr. Tipp proceeded with the competence required by Rule 1.1.

In alleging a violation of Rule 1.1, Mr. Nuno again argues that Mr. Tipp was not competent in his representation because he failed to timely pursue civil claims on Mr. Nuno's behalf. As discussed above, Mr. Tipp was not retained to by Mr. Nuno to pursue civil claims, and Mr. Tipp repeatedly told Mr. Nuno that Mr. Nuno would have to retain other counsel to pursue any potential civil claims. These facts are established by the email exchanges discussed above and enclosed herein, wherein Mr. Nuno acknowledges that Mr. Tipp was not going to represent him on these matters, and further acknowledges that Mr. Nuno was searching for – and speaking with – other counsel to pursue such claim.

Regarding allegations that Mr. Tipp violated Rule 1.1 in relation to Detective Brueckner's involvement, Detective Brueckner's ties to the YWCA was material that could have been utilized by Mr. Tipp to potentially impeach Detective Brueckner and cast doubt on the investigation as a whole at trial. However, due to Mr. Tipp's competent representation of Mr. Nuno, a trial was unnecessary and the charges against Mr. Nuno were dismissed, with prejudice. As demonstrated above, Mr. Tipp was retained by Mr. Nuno to represent and defend him against the criminal charges he was facing. Mr. Tipp provided competent representation and as a result, the charges against Mr. Nuno were dismissed, with prejudice.

Regarding allegations that Mr. Tipp violated Rule 1.3 and did not proceed with diligence in his representation of Mr. Nuno, these allegations are again demonstrably false. Mr. Nuno alleges that Mr. Tipp failed to file motions, including motions to dismiss and to suppress evidence. This

is demonstrably false, as the motions previously enclosed and discussed above demonstrate that Mr. Tipp did in fact file substantive pretrial motions. Furthermore, these motions led to the best possible resolution for a criminal defendant, i.e., dismissal of this case. Mr. Nuno takes issue with the fact that he was required to post bail in this matter and that he was subject to GPS monitoring. However, given the allegations that Mr. Nuno violated conditions of release the same day that he was placed on GPS supervision (see enclosed *State's Petition to Revoke Defendant's Release*), such bail and conditions were not patently unreasonable, especially given the nature of the charges, and a challenge would have proven unsuccessful. While Mr. Nuno may now disagree with some of the strategy undertaken in his defense, he cannot dispute that the strategy Mr. Tipp employed led to the dismissal, with prejudice, of the charges against him, which is the goal of any criminal defense.

Mr. Nuno also alleges that Mr. Tipp violated Rule 1.3 by not pursuing civil actions on Mr. Nuno's behalf. As discussed at length above, Mr. Tipp was not retained to pursue any civil action on Mr. Nuno's behalf, and Mr. Nuno would have needed to find other counsel to pursue any potential civil action. As demonstrated above, this fact was known and acknowledged by Mr. Nuno.

In regards to allegations that Mr. Tipp violated Rule 1.4 by failing to properly communicate with Mr. Nuno, this allegation is also demonstrably false. Mr. Tipp met with Mr. Nuno on many different occasions during which time Mr. Nuno's criminal case and his defense was discussed at length. Furthermore, Mr. Tipp communicated with Mr. Nuno via email with regularity, advising him of the status of his case and Mr. Tipp's defense against the criminal charges against him. If requested, Mr. Tipp can provide the entirety of these emails for review. Specifically disputing Mr. Nuno's allegations that Mr. Tipp failed to discuss potential civil claims, any associated statutes of limitations, and Mr. Tipp's non-representation of Mr. Nuno concerning the same, are the emails of Mr. Nuno acknowledging that Mr. Tipp was not going to represent Mr. Nuno on such matters, and that Mr. Nuno was seeking out other representation in regards to the same. Additionally, during in-person meetings Mr. Nuno was specifically advised by Mr. Tipp that time limitations existed for the filing of any potential civil actions. If Mr. Nuno was not aware of the potential civil claims and their associated statutes of limitations, it begs the question: Why was he seeking to retain outside counsel for such matters during the time Mr. Tipp represented him on his criminal charges?

In regards to allegations that Mr. Tipp violated Rule 1.7 in his representation of Mr. Nuno, again, this is demonstrably false. Although not particularly clear, it appears that Mr. Nuno alleges that Mr. Tipp acted in the interest of the prosecution, rather than Mr. Nuno. This could not be further from the truth. Again, Mr. Tipp achieved dismissal of all charges against Mr. Nuno. Such dismissal aligns directly with Mr. Nuno's interests, and not with the prosecution which brought the charges against Mr. Nuno. Furthermore, Mr. Tipp's focus on defending against the criminal charges Mr. Nuno was facing – the matter he was retained to address – versus pursuit of civil claims on Mr. Nuno's behalf – a matter that Mr. Tipp was not retained for and for which Mr. Nuno knew would require outside counsel – is not a conflict of interest. Mr. Tipp was under no obligation to pursue civil claims on Mr. Nuno's behalf, and his non-representation on such matters cannot support a claim of conflict of interest in violation of Rule 1.7.

As set forth above, neither a factual or legal basis exists to sustain Mr. Nuno's Grievance. Instead, the facts demonstrate that a violation of the Rules of Professional Conduct did not occur in this matter. In the event Mr. Nuno files a reply alleging new "facts" or raising new allegations, we respectfully request the opportunity to respond to the same. Please contact us at your convenience if you require any additional information or if you have any questions concerning Mr. Tipp's conduct in this matter.

Sincerely,

TIPP COBURN LOCKWOOD PC

Torrance L. Coburn
Attorneys for Bryan Charles Tipp

Enc.: As stated